

24NNCV01897 24NNCV01897

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Case Number: 24NNCV01897 Hearing Date: September 11, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Summary Judgment

Hearing Date: 9/11/26

CASE NO.: 24NNCV01897

CASE NAME: Zanjani v. Harry Balian, M.D.

Moving Party: Defendant Harry Balian, M.D.

Responding Party: Plaintiff Kobra Soorati Zanjani

Notice: Sufficient

Ruling: DENY

BACKGROUND

This is medical malpractice case. On May 29, 2024, plaintiff Kobra Soorati Zanjani (Plaintiff) filed a Complaint against Harry Balian, M.D. (Defendant) arising from an order to pause medication that occurred on March 23, 2023. Plaintiff alleges that this order to pause his Brillinta prescription put him at severe health risk.

On June 17, 2026, Defendant filed the instant motion for summary judgement. On August 21, 2026, Plaintiff filed an

opposition. On August 31, 2026, Defendant filed a reply.

LEGAL STANDARD

In reviewing a motion for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

“[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) When a plaintiff seeks summary judgment, the plaintiff must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554, 564-65.)

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.) Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.) “If the [non-moving party] cannot do so,

summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.” (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1037; Aguilar, supra, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

DISCUSSION

Defendant moves for summary judgment against Plaintiff's cause of action for medical negligence on the grounds that Plaintiff cannot establish that (1) Defendant did not comply with the applicable standard of care, and (2) the conduct of Defendant was not a substantial factor in causing any injury to Plaintiff.

Medical
Malpractice/Negligence

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2)

a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (Chakalis v. Elevator Solutions, Inc. (2012) 205 Cal.App.4th 1557, 1571.)

Moving Party’s Burden

Defendant argues that Plaintiff cannot show that Defendant fell below the applicable standard of care. (Mot., p. 9.) In a medical malpractice action, the requisite standard of practice is determined by the applicable standard of practice then existing in the particular professional community. (Landeros v. Flood (1976) 17 Cal.3d 399.) Defendant argues that the declaration of expert John S. Macgregor, M.D., confirms that at all times Defendant complied with the applicable standard of care. (Mot., p. 9.) Defendant argues that cardiac clearance for a screening colonoscopy warrants the decision to approve/order a five-day discontinuance of the patient’s antiplatelet blood thinner medication and this decision was appropriate for a cardiologist under the same or similar circumstances. (Ibid.) Further, Defendant argues that the declaration of this same expert proves that to a reasonable medical probability, the discontinuance of the Brillinta medication, did not cause or significantly contribute to the occurrence of Plaintiff’s acute MI on March 27, 2023. (Mot., p. 10.)

Here, Defendant’s expert, Dr. John Macgregor, declares that it is his opinion that the care and treatment provided by Defendant at all times complied with the standard of care. (Macgregor Decl., ¶ 14.) Further, Dr. Macgregor declares that patients with stents such as the one Plaintiff has, can have their medication stopped five days prior to a procedure such as the one Plaintiff was preparing for. (Macgregor Decl., ¶¶ 15-19.) Dr. Macgregor also declares that it is his opinion that no negligent act or omission on the part of Defendant caused or contributed to Plaintiff’s claimed injuries. (Macgregor Decl., ¶ 22.) Further, Dr. Macgregor declares that elevates stress, dehydration, elevated blood pressure, and the small size of the stent could have caused the “acute MI” Plaintiff suffered. (Macgregor Decl., ¶¶ 24-25.)

Dr. Macgregor’s opinion is in direct conflict with Plaintiff’s expert, Dr. Zern, who declares and opines to a reasonable degree of medical probability that the same conduct fellow below the standard of care and caused an angiographically confirmed thrombosis of the stent in the proximal left anterior descending artery. (Zern Decl., ¶¶ 12-21.)

The Court is not persuaded to hold there are absolutely no triable issues of material fact in light of one expert declaration as to standard of care and causation. While Defendant's evidence certainly aids in their position, Defendant has not met their burden in showing that Plaintiff cannot possibly show a breach in standard of care, causation, or ultimately prove medical malpractice/negligence. Triable issues of fact remain.

Accordingly, the motion for summary judgment is DENIED.

CONCLUSION AND ORDER

Defendant Harry Balian, M.D.'s Motion for Summary Judgment is DENIED.

MOVING PARTY is to give notice.

Motion to Compel Initial Responses; Request for Sanctions

Hearing Date: 9/11/26

CASE NO.: 24NNCV01897

CASE NAME: Zanjani v. Harry Balian, M.D., et al.

Moving Party: Defendant Harry Balian, M.D.

Responding Party: Plaintiff Kobra Soorati Zanjani

Notice: Sufficient

Ruling: DENY
motion to compel as moot; GRANT request for sanctions.

BACKGROUND

This is medical malpractice case. On May 29, 2024, plaintiff Kobra Soorati Zanjani (Plaintiff) filed a Complaint against

Harry Balian, M.D. (Defendant) arising from an order to pause medication that occurred on March 23, 2023. Plaintiff alleges that this order to pause their Brillinta prescription put them at severe health risk.

On August 20, 2026, Defendant filed the instant motion to compel initial responses to Requests for Production of Documents (RPDs) served on Plaintiff. On August 24, 2026, the Court advanced and continued the hearing to the present date in light of an Ex Parte motion filed by Defendant.

On August 28, 2026, Plaintiff filed an opposition. On September 8, 2026, Defendant filed an untimely reply.

LEGAL STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, *supra*, 148 Cal.App.4th at 411.)

DISCUSSION

Motion to Compel Initial Responses

Defendant contends that Plaintiff failed to timely respond to RPDs on or by the statutory deadline. (Mot., p. 5.)

Here, Defendant's counsel served Plaintiff with RPDs by electronic service on May 4, 2026. (Looney Decl., ¶ 3; Exh. A.) Defendant contends that initial responses were due June 8,

2026. (Ibid.) Defendant's counsel declares that although no formal extensions were given, Defendant made good faith efforts to resolve the issue by meeting and conferring with Plaintiff's counsel after the statutory deadline. (Mot., pp. 4-5, Looney Decl., ¶¶ 4-5.) On August 6, 2026, Defendant's counsel sent Plaintiff a meet and confer letter requesting response within 5 days to no avail. (Looney Decl., ¶ 6.) As of August 20, 2026, Defendant declares that Plaintiff has not provided verified responses. (Mot., p. 6, Koletsky Decl., ¶ 8.)

In opposition, Plaintiff argues that they did in fact request an extension to June 19, 2026, via email. (Opp., p. 2.) Nonetheless, Plaintiff argues that they the propounded responses to RPDs on August 21, 2026, via electronic mail. (Opp., p. 3.) Plaintiff argues that Defendant knew this and still went ahead with the instant motion. (Ibid.) Further, Plaintiff argues that Defendant did not attempt to resolve this matter informally in good faith. (Opp., pp. 7-8.)

The Court notes that Defendant's reply is untimely pursuant to Code of Civil Procedure section 1005(b), but the Court will address its argument. In reply, Defendant argues that Plaintiff did not actually issue replies until August 24, 2026. (Reply, p. 3.) Further, Defendant argues that Plaintiff's responses are insufficient because they state paragraphs of objections and pile on medical records that do not correspond to the documents actually requested. (Reply, pp. 4-7.)

Since the filing of the instant motion, Plaintiff has issued verified responses to Defendant's RPDs. (Henriks Decl., ¶ 10, Exh. C.) A motion to compel initial responses seeks to compel a response that has not been issued. (Code Civ. Proc., § 2031.300(b).) Here, a response has been issued. Defendant's reply seeks to compel better quality responses from Plaintiff but a motion to compel initial responses is not the appropriate vehicle to achieve that.

Accordingly, the motion to compel initial responses to RPDs is DENIED as moot.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel

responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Although Plaintiff has since provided verified responses to RPDs, Plaintiff was properly served and failed to respond to discovery requests by the statutory deadline. Plaintiff's failure to comply necessitated the motion, and the conduct is subject to sanctions. (See Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a).) Moreover, The Court finds Defendant's Notices of Motion comply with Code of Civil Procedure section 2023.040.

Defendant's counsel requests sanctions in the amount of \$1,200 reflecting 3.0 hours spent researching, preparing, and drafting this motion and 1.0 hours anticipated attending the hearing at a rate of \$300 per hour. (Looney Decl., ¶ 10.)

The Court acknowledged Plaintiff's request for sanctions but will not address the request in this order.

The Court, in its discretion, will only award \$600 to reflect 2.0 hours at a rate of \$300 due to the straightforward nature of the instant motion.

Accordingly, the Court GRANTS Defendant's request for imposition of sanctions against Plaintiff in the amount of \$600.

CONCLUSION
AND ORDER

Defendant Harry

Balian, M.D.'s motion to compel initial responses to RPDs is DENIED.

Defendant's request

for sanctions is GRANTED in the amount of \$600, to be paid by Plaintiff to Defendant within 30 days from this ruling.

MOVING PARTY to

provide notice of this order.

Motion for Protective Order

Hearing Date: 9/11/26

CASE NO.: 24NNCV01897

CASE NAME: Zanjani v. Harry Balian, M.D.

Moving Party: Defendant Harry Balian, M.D.

Responding Party: Plaintiff Kobra Soorati Zanjani

Notice: Sufficient

Ruling: DENY

BACKGROUND

This is medical malpractice case. On May 29, 2024, plaintiff Kobra Soorati Zanjani (Plaintiff) filed a Complaint against Harry Balian, M.D. (Defendant) arising from an order to pause medication that occurred on March 23, 2023. Plaintiff alleges that this order to pause his Brillinta prescription put him at severe health risk.

On August 28, 2026, Defendant filed the instant motion for protective order. On August 31, 2026, the Court granted Defendant's Ex Parte motion to schedule to set hearing for the instant motion.

On August 28, 2026, Plaintiff filed an

opposition. On September 8, 2026, Defendant filed a reply.

LEGAL STANDARD

Pursuant to Code of Civil Procedure §2025.420(b), the court, for good cause shown, may make any order that justice requires to protect any party... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: including (1) that the deposition not be taken at all; (2) that the deposition be taken at a different time... and (5) that the deposition be taken only on certain specified terms and conditions. (Code Civ. Proc., § 2025.420(b).)

DISCUSSION

Meet and Confer

A motion for protective order must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2025.420(a).)

Here, the parties do not stipulate to any meet and confer efforts. Defendant does not reference meet and confer efforts in the instant motion. Thus, meet and confer efforts have not been satisfied. However, the Court will nonetheless address the issue on the merits, for completeness.

Protective Order

Defendant argues that good cause exists for this protective order requiring Plaintiff to produce their son for deposition or excluding the declaration of Plaintiff's son from, being admitted come trial. (Mot., pp. 5-6.) Defendant argues that Plaintiff's son helped them manage medical affairs and Plaintiff's counsel agreed to produce Plaintiff's son for this deposition before cooperation dissipated. (Mot., pp. 5-6.) Defendant argues that going to trial without the testimony of this key witness would be unfair to Defendant after the defense relied on the representations of Plaintiff's counsel. (Mot., p. 6.) Further, Defendant maintains that Plaintiff has secured a declaration from Plaintiff's son which they intend to use at trial, without giving them the opportunity to cross-examine the witness. (Ibid.)

In

opposition, Plaintiff argues that nearly four months have passed since Defendant has learned of Plaintiff's son's involvement in managing Plaintiff's medical affairs. (Opp., p. 1.) Plaintiff argues that Defendant had several opportunities to seek this deposition and did not do so. (Ibid.) Plaintiff argues that this is a manufactured "emergency" which Defendant created themselves by not following up on this deposition. (Mot., p. 2.) Further, Plaintiff argues that Defendant has had direct access to Plaintiff's son, knows he is in North Carolina, and has not issued a deposition subpoena which is the process by which a non-party can be required to provide testimony. (Opp., pp. 3-4.) Lastly, Plaintiff's counsel reiterates that they do not represent Plaintiff's son and cannot be made to produce him or provide him notice of a proposed deposition. (Mot., p. 5.)

In

reply, Defendant argues that this motion does not intend to force Plaintiff to produce their son, accept service of deposition on behalf of Plaintiff's son, or force Plaintiff's counsel to undertake representing Plaintiff's son. (Reply, p. 1.) Defendant argues that instead this motion seeks to hold Plaintiff to their word and many representations in arranging for the deposition of Plaintiff's son. Reply, p. 2.)

Here,

Plaintiff fails to state the applicable legal authority and similarly mischaracterizes the objective of the instant motion. As Plaintiff correctly states, Code of Civil Procedure section 2025.420 authorizes protective orders limiting or conditioning a deposition on a showing of good cause, for the protection of a party, a deponent, or another affected natural person. (Opp., p. 5.) It does not authorize an order directing opposing counsel to arrange a non-party's deposition. (Ibid.) The process by which a non-party is required to provide a deposition is via subpoena, the same is true for non-party deponents who are out of state. (Code Civ. Proc., § 2020.010(b); Code Civ. Proc., § 2026.010(c).) Defendant seeks to require Plaintiff to produce a non-party, which is not achieved through a protective order.

Accordingly,

Plaintiff's motion is DENIED.

CONCLUSION

AND ORDER

Defendant Harry Balian, M.D.'s Motion for Protective
Order is DENIED.

MOVING PARTY is to give notice.